

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2023CUBC011822: JASMINE GUTIERREZ vs MERCEDES BENZ USA LLC, et al.

09/21/2026 in Department 44

Motion for Attorney Fees/Costs

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 3:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties. Use the subject line “SUBMISSION ON TENTATIVE”, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Notice of Ruling. Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A “notice of ruling” in lieu of this procedure is not authorized.

Motion: Plaintiff Jasmine Gutierrez’ (“Plaintiff”) Motion for Attorney Fees and Costs

Tentative Ruling:

Plaintiff’s Motion is GRANTED in part, and DENIED in Part. Defendant Mercedes-Benz USA, LLC (“Defendant”) is ordered to pay attorneys fees in the reasonable amount of \$16,425. On May 26, 2026, this Court GRANTED in part Defendant Mercedes Benz USA LLC’s Motion to Tax Costs, reducing Plaintiff’s costs sought from 3,292.34 by \$489.09, for a total cost award to Plaintiff of \$2,803.25.

Defendants Objection Nos. 5, 8, 9, 10, 11, 12, 13 are OVERRULED.

Defendant’s Objection Nos. 2, 3, 4, 6, 7, are SUSTAINED.

Defendant's Objection No. 1 is SUSTAINED to the extent the Kirnos Declaration contains legal citations and a recitation of the principle for which the case is cited. The objection is otherwise OVERRULED.

Plaintiff is the prevailing party in this Lemon Law action under the Song Beverly Warranty Act against Defendant. As the prevailing party, Plaintiff seeks attorney fees and costs totaling \$36,182.84, which amount comprises \$21,927.00 in lodestar fees with a requested multiplier of 1.5 to add \$10,963.50, and costs in the amount of \$3,292.34. Plaintiffs' attorneys and clerks billed 53.5 hours at an hourly rate ranging from \$175 to \$500 per hour across 9 different timekeepers, and approximately half of the hours billed by one timekeeper, Phil Thomas. Notably, the attorney who prepared the motion, Roger Kirnos, did not include any time billed for the preparation of this motion. The case was litigated for approximately 2 years, and included a motion to compel arbitration as well as five successful discovery motions filed by Plaintiffs, with an associated discovery sanctions award of \$5,900. The case resolved in May 2025, with Defendant's agreement to pay in settlement an amount that amounts to \$140,000, or roughly twice the amount of the purchase price of the vehicle at issue.

Defendant opposes Plaintiff's motion arguing that Plaintiff's rates are not reasonable according to the prevailing rate for attorneys in the community, that the request includes fees already determined and awarded by the Court, and that Plaintiff fails to justify the requested multiplier. The Court previously awarded discovery sanctions totaling \$5,900 but the Motion seeks a total of \$10,977 for the fees associated with these same discovery motions.

The Court finds that the rates sought by Plaintiff are reasonable, however, as this Court previously found, the amount of time spent is excessive concerning the discovery law and motion and declines to re-award fees for the discovery motions, which were previously awarded by this Court in the form of discovery sanctions in the amount of \$5,900 for fees billed in the amount of \$10,977, leaving a lodestar of \$10,950. Though this is a straightforward Lemon Law action, the results obtained for Plaintiff are very good and notwithstanding the additional law and motion work prompted by Defendant's failure to follow discovery orders made by this Court. Plaintiff's request for a 1.5 lodestar multiplier is GRANTED for a total fee award of \$16,425.

Plaintiff to give notice.